

Executive Engineer, U.P. Power Corporation Nigam Ltd. v. K.K. Singh

High Court of Judicature at Allahabad · Single Judge · 12 November 2014 · WRIT - C No. - 59907 of 2014 · **Notice issued; Permanent Lok Adalat award stayed till next listing**

HEADNOTE

On a licensee's writ to quash a Permanent Lok Adalat award as illegal and contrary to Clause 4.1 of the U.P. Electricity Supply Code, 2005, the Allahabad High Court issued notice to the consumer and stayed the award till the next listing, without deciding the merits.

FACTUAL SUMMARY

The Executive Engineer of U.P. Power Corporation Nigam Ltd. petitioned the Allahabad High Court to quash the Permanent Lok Adalat, District Basti award dated 5 August 2014 in Case No. 15 of 2014 against consumer K.K. Singh. Counsel for the licensee submitted that the Lok Adalat's findings were illegal, contrary to the record, and contrary to Clause 4.1 of the U.P. Electricity Supply Code, 2005. After hearing the petitioner, the Court issued notice and directed a stay of the impugned award.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

interlocutory stay of Permanent Lok Adalat award

HOLDING

Where a licensee seeks to quash a Permanent Lok Adalat award as illegal, contrary to the record and contrary to Clause 4.1 of the U.P. Electricity Supply Code, 2005, the writ requires consideration: notice issues to the consumer and the award remains stayed till the next date of listing. ¶ 1

PRINCIPLE TAGS

arrears-run-with-the-premises

On a licensee's writ to quash a Permanent Lok Adalat award as illegal and contrary to Clause 4.1 of the U.P. Electricity Supply Code, 2005, the Allahabad High Court issued notice to the consumer and stayed the award till the next listing, without deciding the merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT AWARD DATED 5 AUGUST 2014 IS ILLEGAL OR CONTRARY TO CLAUSE 4.1 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Merits were not decided; only notice issued and the award stayed till the next listing. ¶ 1